

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 818

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO FERTILITY PRESERVATION SERVICES; AMENDING CHAPTER 18, TITLE 41, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 41-1854, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING COVERAGE FOR CERTAIN FERTILITY PRESERVATION SERVICES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 18, Title 41, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 41-1854, Idaho Code, and to read as follows:

41-1854. COVERAGE FOR CERTAIN FERTILITY PRESERVATION SERVICES. (1) As used in this section:

(a) "Fertility preservation services" means the collection and preservation of sperm, unfertilized oocytes, and ovarian tissue.

(b) "Fertility preservation services" does not include the storage of such unfertilized genetic materials.

(2) This section shall apply only to a health benefit plan that provides benefits for medical or surgical expenses incurred as a result of a health condition, accident, or sickness, including an individual, group, blanket, or franchise insurance policy or insurance agreement, a group hospital service contract, or an individual group evidence of coverage or similar coverage document that is offered by:

(a) An insurance company;

(b) A group hospital service corporation operating pursuant to chapter 34, title 41, Idaho Code;

(c) A managed care organization operating pursuant to chapter 39, title 41, Idaho Code;

(d) A fraternal benefit society operating pursuant to chapter 32, title 41, Idaho Code; or

(e) An exchange operating pursuant to chapter 61, title 41, Idaho Code.

(3) Notwithstanding any other provision of law to the contrary, a group or individual health benefit plan providing benefits for medical or surgical expenses incurred as a result of a health condition, accident, or sickness shall provide coverage for fertility preservation services to a covered person who will receive a medically necessary treatment for cancer, including surgery, chemotherapy, or radiation, that the American society of clinical oncology or the American society for reproductive medicine has established may directly or indirectly cause impaired fertility.

(4) The fertility preservation services described by subsection (3) of this section shall be standard procedures to preserve fertility consistent with established medical practices or professional guidelines published by

1 the American society of clinical oncology or the American society for repro-
2 ductive medicine.

3 SECTION 2. An emergency existing therefor, which emergency is hereby
4 declared to exist, this act shall be in full force and effect on and after
5 July 1, 2026.